

Mohd. Gulfam v. State of U.P. — assessment and recovery citation relegated to para 6.8 objection

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · Writ-C No. 33852 of 2021 · WRIT - C No. 33852 of 2021 · **Writ disposed; para 6.8 objection directed; coercive action stayed.**

HEADNOTE

Without expressing any opinion on merits, the Allahabad High Court disposed of a writ challenging an assessing calculation memo and a tehsildar recovery citation by granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, and stayed coercive action for eight weeks or until that objection is decided, whichever is earlier.

FACTUAL SUMMARY

Mohd. Gulfam challenged before the Allahabad High Court an Assessing Calculation Memo/Notice dated 26 December 2020 of the Executive Engineer, Electricity Distribution Division, Murad Nagar, Ghaziabad, and a Tehsildar, Modinagar recovery citation dated 30 September 2021 for Rs. 2,07,324, also seeking restraint on disconnection and coercive recovery. The petition was listed on 21 December 2021 and adjourned as none appeared. At the 20 May 2022 hearing, counsel for the distribution licensee stated that an objection to the demand could be filed and would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

assessment-6.8-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ challenging an assessing calculation memo and a recovery citation is disposed of by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks; if so submitted, the objection is to be decided in accordance with law after reasonable opportunity of hearing, preferably within the next four weeks, and no coercive action shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The writ against the assessing calculation memo and recovery citation was disposed of by relegating the consumer to a para 6.8 objection, without a decision on merits. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the para 6.8 objection is filed within four weeks, it is to be decided after hearing, preferably within four weeks; coercive action is stayed for eight weeks or till disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSING CALCULATION MEMO DATED 26.12.2020 AND THE RECOVERY CITATION DATED 30.09.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1